

		under Welf. & Inst. Code section 15657 (item 2 in the notice of motion) • paragraph 7 of the prayer, which asks for an award of punitive damages “to the extent permitted by law on the dependent-adult abuse claim and any other claim supporting such recovery” (item 3 in the notice of motion) Although paragraphs 57 through 60 are in the introductory portion of the SAC rather than the second cause of action for statutory elder abuse, they are in a section entitled “Allegations Supporting Heightened Remedies and Punitive Damages” and reference the second cause of action. Likewise, the requests for attorneys’ fees and costs and attorneys’ fees reference the second cause of action. In that the Court is sustaining the accompanying demurrer to the second cause of action, these allegations and requests are now extraneous to the viable causes of action in the SAC. Also, the allegations in paragraphs 57 through 60 are conclusory and made on information and belief without specifying the basis for that information and belief. Moving Parties shall give notice of all the above.
3	Ragland vs. Wells Fargo, N.A. 2020-01137118	1. Motion – Other 2. Motion to Strike or Tax Costs Plaintiff’s Motion to Tax Costs Plaintiff Motion to Strike and/or Tax Costs is DENIED. (Cal. Rules of Court, Rules 3.1700 and 8.278; ROA 2333 [Memorandum of Costs on Appeal]; ROA 2330 [Minute Order dated 4/6/26]; ROA 2319 [Remittitur dated 1/22/26].) Plaintiff argues the Memorandum of Costs is not timely. Plaintiff reasons that the Memorandum of Costs was filed more than 15 days from 4/6/26, the date the stay of proceedings was lifted. Cal. Rules of Court,

	Rule 8.278, subd. (c)(1) provides a prevailing party on an appeal 40 days to file a memorandum of costs. Cal. Rules of Court, Rule 3.1700, subd. (b)(3) permits the court to extend the time for the service and filing of a cost memorandum by up to 30 days. On this basis, the Court finds that the memorandum of costs on appeal was timely filed and served. In assessing a motion to tax or strike costs, a burden shifting analysis is used. The cost claimant bears the initial burden of establishing prima facie entitlement to the recovery of costs. The claimant meets its burden if the verified cost bill “appears proper on its face.” (<i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 855; <i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761, 774.) “If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary.” (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (<i>Ibid.</i>) But conclusory assertions alone are not enough to cause this shift to happen. “[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) Plaintiff has failed to meet her burden to show that the memorandum of costs as a whole, or any item of costs sought therein is improper. Plaintiff asserts that the cost claimant lacks standing to claim costs because they lack standing to do so. Plaintiff bases this assertion on the various arguments made in
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	her purported motion for an Order to Show Cause. As discussed in greater detail below, the Court finds that the issues raised in that motion have already been decided. In any event, regardless of the cost claimants' standing to defend this lawsuit, the fact remains that defendants Wells Fargo Bank, National Association as Trustee for Structured Asset Securities Corporation, Mortgage Pass Through Certificates, Series 2006-OPT1 (erroneously sued herein as "Wells Fargo Bank, a national corporation") (hereinafter "Wells Fargo"), Ocwen Loan Servicing, LLC, (erroneously sued herein as "Ocwen Financial Corporation")¹, and PHH Mortgage Corporation (collectively, the "Bank Defendants") were the moving parties in the Special Motion to Strike that was the subject matter of Plaintiff's failed appeal. It is also clear that the Court of Appeals ordered in the 1/22/26 Remittitur that these Parties are eligible to recover the costs they incurred defending the appeal. Thus, whatever questions Plaintiff has regarding the overall standing of these Defendants in this litigation and Womble Bond Dickinson's authority to represent them are not relevant to the appellate costs these Defendants currently seek. Plaintiff fails to make any meaningful challenge to the propriety of any of the costs claimed in the memorandum of appellate costs. Each of the costs claimed are explicitly authorized by Cal. Rules of Court, Rule 8.278, subds. (d)(1)(A) and (B) and Plaintiff has failed to demonstrate that the amount of the claimed costs is unreasonable. Additionally, Plaintiff's argument concerning the lease agreement are not persuasive, as Plaintiff has failed to identify any provision of the lease that could serve to override Cal. Rules of Court, Rule 8.278. Accordingly, the Motion is DENIED. Plaintiff Pam Ragland shall pay the Bank Defendants' costs on appeal in the amount of \$4,482.49.
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		Plaintiff's Motion for Order to Show Cause Plaintiff's Motion for Order to Show Cause is DENIED. The Court has already addressed the issues raised in Plaintiff's Motion for Order to Show Cause. (See ROA 1630 [2/14/25 Minute Order].) Any issues regarding Womble Bond Dickinson's representation of the various defendants has been clarified by the filing of appropriate substitutions of attorney. (See ROA Nos. 1655, 1656.) Plaintiff's instant motion is nothing more than an untimely and unsubstantiated attempt to request reconsideration of the Court's prior orders on these issues. Trial shall proceed as scheduled. Plaintiff shall give notice of these rulings.
4	CME International, LLC vs. Aloyan 2025-01455857	Motion to Set Aside/Vacate Default and Judgment Defendants Levon Aloyan and Alshot Aloyan's Motion to Set Aside the Default and Default Judgment is DENIED without prejudice to Defendants seeking relief under Code Civ. Proc. §473, subd. (d). Defendants move for an order setting aside a default entered against them on 5/22/25 and the resulting default judgment entered on 3/25/26 pursuant to Code Civ. Proc. §473, subd. (b). Defendants argue that they timely filed responses to the Complaint, but due to excusable neglect, failed to appropriately serve the same upon Plaintiff. Discretionary Relief Under Code Civ. Proc. §473, subd. (b) To obtain relief from default under Code Civ. Proc. §473, subd. (b), a motion "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. §473, subd. (b).) When seeking discretionary relief under §473, the